

# CRUDE OIL EXCHANGE AGREEMENT

This Crude Oil Exchange Agreement (the "Agreement") is entered into as of January 1, 2026 ("Effective Date"), by and between: **Party A:** Alpha Energy Trading LLC, a Delaware limited liability company, with offices located at 1000 Energy Plaza, Houston, Texas 77002 ("Party A"); and **Party B:** Beta Petroleum Resources Inc., a Texas corporation, with offices located at 500 Refinery Road, Midland, Texas 79701 ("Party B"). Party A and Party B may be referred to individually as a "Party" and collectively as the "Parties."

## 1. PURPOSE AND SCOPE

The purpose of this Agreement is to establish the general terms and conditions under which the Parties may exchange crude oil and related petroleum products at designated delivery points. This Agreement is intended to facilitate operational flexibility, logistics optimization, and commercial efficiency.

## 2. DEFINITIONS

"Barrel" or "bbl" means forty-two (42) United States gallons of crude oil at 60°F.

"Delivery Point" means any pipeline interconnection, terminal, refinery, or storage facility mutually agreed by the Parties, including but not limited to Cushing, Oklahoma and the Houston Ship Channel.

"Exchange Transaction" means a transaction in which crude oil is delivered by one Party with an obligation for redelivery of an equivalent volume and comparable quality.

## 3. EXCHANGE TRANSACTIONS

3.1 Each Exchange Transaction shall be confirmed in writing and shall specify the volume (in barrels), crude grade, delivery location, delivery month, and any applicable quality tolerances.

3.2 Exchanges shall be conducted on a barrel-for-barrel basis unless otherwise agreed in writing.

#### 4. DELIVERY AND TITLE TRANSFER

Title and risk of loss shall transfer at the custody transfer point at the applicable Delivery Point. Each Party shall be responsible for all costs and liabilities associated with its deliveries up to such point.

#### 5. QUALITY AND MEASUREMENT

Crude oil delivered under this Agreement shall be merchantable and meet the specifications normally accepted at the Delivery Point. Volumes shall be measured in accordance with API standards.

#### 6. IMBALANCES AND SETTLEMENT

Any imbalances shall be tracked monthly. The Parties shall use reasonable efforts to eliminate imbalances through future in-kind exchanges. If cash settlement is elected, settlement shall be based on the average monthly NYMEX WTI settlement price.

## 7. FORCE MAJEURE

Force Majeure events include acts of God, pipeline outages, governmental orders, and other events beyond the reasonable control of the affected Party. Performance shall be suspended during the Force Majeure event.

## 8. CONFIDENTIALITY

All commercial terms and operational information exchanged under this Agreement shall be kept confidential for a period of three (3) years following termination of this Agreement.

## 9. TERM AND TERMINATION

This Agreement shall remain in effect for an initial term of one (1) year and shall automatically renew unless terminated by either Party upon thirty (30) days' written notice.

## 10. GOVERNING LAW

This Agreement shall be governed by and construed in accordance with the laws of the State of Texas, excluding conflict of law principles.

## 11. MISCELLANEOUS

This Agreement may be executed in counterparts and delivered electronically. Neither Party may assign this Agreement without prior written consent, except to an affiliate.

IN WITNESS WHEREOF, the Parties have executed this Agreement as of the Effective Date.

### **PARTY A – Alpha Energy Trading LLC**

By: John R. Matthews  
Title: Vice President, Crude Trading  
Date: January 1, 2026

### **PARTY B – Beta Petroleum Resources Inc.**

By: Sarah L. Donovan  
Title: Director, Supply & Logistics  
Date: January 1, 2026